



Leaving the U.S. Without Valid Travel Documents

An exit guide for people without passports, people with mismatched identity documents, and people with no identity documents.

Are you at risk living in the United States but have limited access to valid, accurate travel documents? This guide will help you understand the current legal landscape around international border crossings, especially to Canada and Mexico.

We'll discuss relocation options for both U.S. citizens and non-citizens in three distinct situations:

- 1. People who lack a valid passport**
- 2. People whose travel documents have mismatched names or gender markers**
- 3. People who have no identity documents at all**

Because individual circumstances vary enormously, this guide focuses on the **current** landscape rather than prescribing a course of action. Please assess your own risk based on your specific situation.

This document is not legal guidance. Please consult qualified legal counsel when making international travel plans.

1) Options for People Without a Valid Passport

Can you leave the United States without a passport? International air travel is [not an option](#) without a valid passport book. There are also [no legal ways to enter Mexico from the U.S. without a passport](#). However, there are some legal land and sea border crossing options into Canada.

Crossing Into Canada: U.S. Citizens Without Passports

In most cases, [U.S. citizens seeking to enter Canada should travel with a valid U.S. passport](#). However, **if you lack a passport, you may be able to use a combination of other documents to show citizenship and government-issued photo identification**, which could include the following:



- Birth certificate
- Certificate of citizenship or naturalization
- Certificate of Indian status, along with photo identification
- U.S. enhanced driver's license

If you plan to travel to Canada without a passport, check with Canadian immigration authorities to ensure your documents meet the latest requirements.

Note: Canadian immigration and border service officers [can deny entry](#) if they are not satisfied that you will leave at the end of the authorized stay.

Entering Canada: U.S. Foreign Nationals

Generally, non-U.S. foreign nationals [need a passport and a visa](#) to enter Canada. U.S. Lawful Permanent Residents are an exception. To enter Canada via land or water, U.S. Lawful Permanent Residents need to provide one of the following documents:

- A valid permanent resident (green) card
- Equivalent valid [proof of status](#) in the U.S.

Note: Under current CBP immigration practices, exiting the U.S. without a valid passport is legal but carries some risk.

Seeking Asylum Without a Passport

If the options above are not viable, traveling by land or sea to [seek asylum](#) may be an option for those experiencing well-documented persecution. You do not need legal identity documents to seek international protection, although documentation is helpful.

We do not recommend seeking asylum except as an absolute last resort and strongly advise seeking legal counsel for this route.

2) Options for People with Mismatched Passports

If your up-to-date passport does not reflect your current legal name, gender marker, or both, you can still travel internationally. We'll cover the legal status and some practical considerations in this section.

International Travel Options With Mismatched Documents



If your passport has a name or gender marker that doesn't match your current identity or other documents, it can create complications. **But it does not automatically prevent travel.** Consider the following:

- Discrepancies in name tend to cause more practical problems than with gender markers, particularly when presenting multiple forms of ID.
- Your ability to be perceived consistently with your documents, language proficiency, and other privilege factors will impact your experience with immigration and border officials.
- Mismatched documents may result in you being subjected to more questioning or secondary inspection about identity or document validity.

Passport Policy on Sex Markers for U.S. Citizens

The U.S. government currently [requires](#) that sex markers on U.S.-issued documents, such as passports, visas, and Global Entry cards, match those that the person was assigned at birth.

Following the [November 2025 U.S. Supreme Court ruling in *Orr v. Trump*](#), the State Department is required to issue passports that reflect a person's sex assigned at birth. This is based on supporting documents and State Department records. The case continues to be litigated in lower courts, and the policy may change.

All unexpired U.S. passports remain legally valid for travel. The State Department has [confirmed](#) that passports issued before this policy change, including those with an "X" marker or a gender marker that does not match other documents, remain valid until expiration. The current policy only impacts new passports and amendments.

Name Changes on U.S. Passports

The process for requesting a name change on a passport has not changed, and the current administration has not announced any intent to alter it. You can still update the name on your passport through [the standard process](#), even if you are unable to update the gender marker.

Passport Policy for U.S. Foreign Nationals and Other Non-Citizens

Foreign nationals and other non-citizens in the U.S. may face more risk when identity documents do not align, including:



- Passports
- Visas
- Prior immigration records

As of 10 April 2026, [the State Department requires](#) Diversity Visa Program applicants to indicate their “biological sex at birth” at all stages of the process. This is required even if the sex differs from the sex listed on the applicant’s foreign passport or other identifying documentation.

It is currently unknown whether this change will increase the risk of profiling or detention when foreign nations and other non-citizens who have changed their sex marker attempt to exit the U.S.

USCIS Document Policies

USCIS (United States Citizenship and Immigration Services) [issued a policy alert](#) stating that it will only recognize two sexes. With this change, all documents must list the gender assigned at birth. USCIS has indicated it will not penalize trans people who list their lived gender, but discrepancies may result in processing delays. CBP is also requiring a [binary identification on all travel tickets](#).

3) Options for People With No Identity Documents

If you lack any valid identity documents, you unfortunately face the largest barriers. Without a valid passport, leaving the United States by air is not a realistic option, regardless of citizenship status.

To exit by land, U.S. law does not generally require people to present a passport. However, [passports are sometimes requested](#), and failing to show one carries increased risk under current CBP operations.

Regardless, you must meet the destination country’s [entry requirements](#), which typically include a valid passport. **Leaving the U.S. may be physically possible, but you’ll likely be denied lawful entry in another country unless you are seeking asylum.**

If you’re experiencing well-documented persecution in the U.S., seeking asylum after crossing a land or sea border may be the only legal option to exit the country without ID documents. While it may cause complications, you do not need legal identity documents to seek asylum.



Learn more about [what it means to claim asylum](#) here. **Again, we strongly advise getting legal counsel for asylum cases.**

Summary of Border Crossing Options			
	People with Mismatched Passports	People Without a Valid Passport	People With No Identity Documents
International Air Travel	Regardless of gender marker, unexpired passports remain legally valid for air travel. A name mismatch across documents may complicate travel.	Generally not possible. Requires a passport.	Generally not possible. Requires a passport
Land or Water Border Crossings to Canada	U.S. citizens can enter with an unexpired passport or any two approved documents that prove U.S. citizenship A name mismatch across documents may complicate travel, especially for non-citizens.	U.S. citizens can enter with two approved documents that prove U.S. citizenship. Lawful Permanent Residents can enter with a green card or equivalent.	Seeking asylum is likely the only legal option without legal ID documents.
Land or Water Border Crossings to Mexico	Can enter with an unexpired passport. A name mismatch across documents may complicate travel.	Generally not possible. Requires a passport. Seeking asylum at the border may be an option.	Seeking asylum is likely the only legal option without ID documents.



Re-entering the United States

Re-entry for U.S. Citizens

If you do leave, it's critical to think about your ability to return. As a U.S. citizen, you have a right to re-enter the United States and can use a variety of [alternative documents](#) to do so. However, re-entry may be delayed or more complicated without a valid passport.

We're seeing [more reports of electronic device searches](#) by CBP when people are re-entering. Citizens [have even had their U.S. entry temporarily blocked](#), despite this being illegal.

Even **with** a valid passport, CBP officers may subject you to [secondary inspection](#). This is especially true if you have been abroad for a long time or have sought asylum elsewhere.

Re-entry for Non-Citizens

If you are not a citizen and plan to leave the U.S., consult with an immigration attorney first — regardless of document status. Foreign nationals [do not have a guaranteed right of re-entry](#) to the United States. Even [lawful permanent residents are increasingly being denied re-entry](#) under current U.S. border enforcement policies.

There is no universal rule requiring foreign-issued documents to reflect sex assigned at birth. But, individuals who have changed their gender may face more scrutiny. For example, there are cases of [foreign nationals who changed their gender markers being denied visas and entry](#). The changing landscape related to gender markers on visa applications may further complicate re-entry.

How to Assess Your Risk

The decision to travel abroad with missing or mismatched documents versus staying in the U.S. is deeply personal. No general guidance can replace a personal assessment and qualified legal counsel. However, there are some high-level risk factors to consider:

- The severity of the persecution you're experiencing or at risk of, if any
- Your specific presentation and perceived identity
- The destination country's policies toward TGI travelers and travelers of color, if applicable



- Factors that increase the risk of profiling and detention at border crossings (i.e., race, ethnicity, English proficiency, immigration status)

Help Me Leave does not provide legal advice. Consult a qualified immigration attorney before making any border crossing or immigration decisions.

Reminder: This brief reflects the law and policy as of April 2026. This is a rapidly changing area of law. We will update this content if significant legal changes occur, including any final judgment in *Orr v. Trump*.

More Resources

The following organizations provide information, legal assistance, and ongoing updates relevant to the topics covered in this guide.

Passports / Orr v. Trump

- [ACLU Q&A on Orr v. Trump](#)
- [ACLU Case Page - Intake Form](#)

Immigration / Asylum

- [International Refugee Assistance Project \(IRAP\)](#)
- [Church World Service Daily State of Play](#)
- [UNHCR LGBTIQ+ Resources](#)
- [Organization for Refuge, Asylum & Migration \(ORAM\)](#)

Travel Rights

- [Advocates for Trans Equality: Know Your Rights: Passports](#)
- [Know Your Rights: Airport Security](#)
- [Lambda Legal Identity Document Guide](#)
- [GLAD Law Identity Document Updates for Trans People](#)

Legal Assistance

- [Transgender Law Center - Trans Immigrant Defense Effort](#)

Questions? Noticed an error? Email us at advocacy@helpmeleave.us.